

24STCV15891 24STCV15891

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-16

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Case Number: 24STCV15891 Hearing Date: September 16, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 16 2026 TRIAL

DATE: April 6, 2027

CASE: Security National Insurance Company v.

Modern Floor Specialists Inc., et al.

CASE

NO.: 24STCV15891

MOTION TO

STRIKE PLEADINGS

MOVING PARTY/PARTIES: Plaintiff and Cross-Defendant Security National

Insurance Company

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on March 30,
2026 for September 16, 2026 hearing date

CASE HISTORY:

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June 25, 2024: Complaint filed.

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April 28, 2025: Defendant's
operative first amended answer filed.

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September 12, 2025: Defendant's
cross-complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff
and Cross-Defendant Security National Insurance Company ("Plaintiff") moves to
strike the operative first amended answer and cross-complaint of Defendant
Modern Floor Specialists, Inc. ("Defendant").
Defendant has not opposed the motion.

TENTATIVE RULING:

Plaintiff's
motion to strike Defendant's pleadings is GRANTED.

Moving
party to give notice.

DISCUSSION:

Any party, within the time allowed
to respond to a pleading, may serve and file a motion to strike the whole
pleading or any part thereof. (Code Civ.
Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the Court may: (1)
strike out any irrelevant, false, or improper matter inserted in any pleading;

or (2) strike out all or any part of any pleading not drawn or filed in

conformity with the laws of California, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Defendant is a suspended corporation. "The suspension of the corporate powers, rights, and privileges means a suspended corporation cannot sue or defend a lawsuit while its taxes remain unpaid." (*Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2006) 136 Cal.App.4th 212, 217–218.) As such, Defendant cannot defend this action, nor can it maintain its cross-claims.

As such, Plaintiff's motion to strike Defendant's pleadings is GRANTED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 16, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.